

		contentions and it “would be unfair to the other parties to litigation” to ignore this fact. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.) Plaintiff to give notice.
4	23-01329149 <i>Eikanas vs. Summit Healthcare REIT, Inc.</i>	1) Motion to Challenge Privilege Clawback Attempt 2) Motion to Compel Answers to Special Interrogatories
5	23-01342492 <i>Er vs. APSEC Resolution Trust LLC</i>	1) Demurrer to Amended Complaint 2) Demurrer to Amended Complaint Defendant APSEC’s demurrer is OVERRULED in part as to the 1st-5th and 9th-11th causes of action and SUSTAINED in part as to the 6th-8th causes of action with leave to amend. Defendant ADM’s demurrer is OVERRULED in part as to the 1st-5th, 10th, and 11th causes of action and sustained in part as to the 6th and 7th causes of action with leave to amend. <u>Judicial Notice</u> Defendants’ requests for judicial notice are denied. Documents relating to the transactions alleged in the complaint, including the underlying loan documents, notices of default, and letters are not the subject of judicial notice. <u>Wrongful Foreclosure</u> The first cause of action is for wrongful foreclosure, the elements of which are: (1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property under a power of sale in a mortgage or deed of trust; (2) the party attacking the sale was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering. (<i>Turner v. Seterus, Inc.</i> (2018) 27 Cal.App.5th 516, 525.) Plaintiffs have properly alleged a wrongful foreclosure. Plaintiffs allege the foreclosure was fraudulent, plaintiffs were harmed, and they tendered the amount of indebtedness. (SAC, ¶¶ 50, 56, 57.) Thus, defendants’ demurrer to the 1st cause of action is overruled. <u>Breach of Civil Code §§ 2923.5, 2924, 2924c, and 2924f</u> “Whenever all or a portion of the principal sum of any obligation secured by deed or trust or mortgage on real property ... [has] become due or been declared due by reason of default in payment...the trustor or mortgagor or their successor in interest ... may pay to the beneficiary or the mortgagee or their successors in interest... the entire amount due ... other than the portion of principal as would not then be due had no default occurred....” (Civil Code, § 2924c.)